
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager *TJB*
DATE: March 23, 2022
SUBJECT: Consideration of Bid #E-8-22 for a Contract between the City of Cheyenne and Pine Bluffs Gravel & Excavating, for the Yard Waste Material Hauling and Fill Dirt Hauling, for the City of Cheyenne, Compost Facility

Six (6) bidders responded to this bid, and the bid tabulation is attached.

The Six (6) bids were received from:

1. Pine Bluffs Gravel & Excavating. Pine Bluffs, Wyoming.
2. Earth Work Solutions (WY). Gillette, Wyoming.
3. RAM Trucking, Inc. Cheyenne, Wyoming.
4. TC Solutions. Cheyenne, Wyoming.
5. Rocky Mountain Sand & Gravel. Cheyenne, Wyoming.
6. JDub Hauling. Cheyenne, Wyoming.

The bids were reviewed by Matt Theriault (Landfill / Compost), Craig LaVoy (Public Works), and Vicki Nemecek (Public Works), and their recommendation is to accept the lowest responsive bid from Pine Bluffs Gravel & Excavating, for a total bid award amount of \$144,800.00.

Funding: 023-14-1423-43-21301 (Solid Waste Fund / Professional Services)

BID TABULATION
CITY OF CHEYENNE - PURCHASING
BID NUMBER: E-8-22

Bid Opening: March 16, 2022

Yard Waste Material Hauling and Fill Dirt Hauling, for the City of Cheyenne, Compost Facility

Bid Submission Info

Pricing Submittals

Bidder Name & Location	Addendum (ONE)	Signed	Bid Guarantee (5%)	Resident Bidder	ORIGINAL ITEMIZED BID SHEET – SEPARATE PILES	ADDITIONAL BID ITEM - ITEMIZED BID SHEET – MIXED & UN-MIXED PILES
Rocky Mountain Sand & Gravel. Cheyenne, Wyoming.	YES	YES	YES	YES	\$ 565,075.00	\$ 557,980.00
Pine Bluffs Gravel & Excavating. Pine Bluffs, Wyoming.	YES	YES	YES	YES	\$ 144,800.00	\$ 144,800.00
Earth Work Solutions (WY). Gillette, Wyoming.	YES	YES	YES	YES	\$ 155,986.00	\$ 158,674.00
RAM Trucking, Inc. Cheyenne, Wyoming.	YES	YES	YES	YES	\$ 226,000.00	\$ 226,000.00
JDub Hauling. Cheyenne, Wyoming.	NO	YES	YES	YES	\$ 314,540.00	<i>Did not utilize Addendum One Bid Form</i>
TC Solutions. Cheyenne, Wyoming.	YES	YES	YES	YES	\$ 499,200.00	\$ 477,600.00

INQUIRIES REGARDING THIS BID SHOULD BE DIRECTED TO:

CITY OF CHEYENNE, PURCHASING MANAGER, PHONE: (307) 773-1045, EMAIL: TBARTTELBORE@CHEYENNECITY.ORG
MUNICIPAL BUILDING, 2101 O'NEIL AVE, ROOM 309, CHEYENNE, WYOMING 82001

TJB

CITY OF CHEYENNE, WYOMING
AGREEMENT

Bid No. E-8-22

APPROVED

By Stefanie Boster at 9:55 am, Mar 23, 2022

Contract No. _____

THIS AGREEMENT, entered into this ____ day of _____, _____, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the "CITY", and **PINE BLUFFS GRAVEL & EXCAVATING, INC.**, hereinafter referred to as the "CONTRACTOR".

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the "**Yard Waste Material Hauling and Fill Dirt Hauling**" project all in strict accordance with the Contract Documents including all addenda thereto, numbered and dated: March 4, 2022.

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the "Notice to Proceed" that will be issued by the City. The work shall be completed by **April 15, 2023**. If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, the sum of **One Hundred Forty-Four Thousand, Eight Hundred Dollars (\$144,800.00)**. In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established annually by the City Treasurer's Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

- | | |
|------------------------|--------------------------------------|
| 1. This Agreement; | 5. Liquidated Damages; |
| 2. Addenda; | 6. Specifications and Scope of Work; |
| 3. Invitation To Bid; | 7. Signed Bid Proposal; and |
| 4. General Provisions; | 8. Drawings. |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Kristina F. Jones, City Clerk

Patrick Collins, Mayor

Pine Bluffs Gravel & Excavating, Inc.

Contractor

By

Title

P.O. Box 609
Pine Bluffs, WY 82082